

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

=====X
AMBAR ACOSTA,

Plaintiff,

-against-

ALBERTO ENRIQUE; POLICE OFFICER
PERCORARO, shield No. 15462; POLICE
OFFICER TOLAND, shield No. 1198;
and THE CITY OF NEW YORK,

Defendants.
=====X

Index No. _____

Date Purchased: _____

SUMMONS

To the above-named defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the plaintiff's attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
December 15, 2012

Yours, etc.,

/s/ Roberto A. Reverón

Roberto A. Reverón, Esq.
710 West 190th Street
Suite D
New York, New York 10040-2903
(917) 687-4278

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

=====X

AMBAR ACOSTA,

Plaintiff,

COMPLAINT

-against-

Index No. _____

ALBERTO ENRIQUE; POLICE OFFICER
PERCORARO, shield No. 15462; POLICE
OFFICER TOLAND, shield No. 1198;
and THE CITY OF NEW YORK,

Defendants.

=====X

Plaintiff, by her attorney, ROBERTO A. REVERÓN ESQ., as and for her Complaint,
respectfully alleges:

AS AND FOR A FIRST CAUSE OF ACTION

1. On or about September 17, 2011, and at all times relevant herein, the plaintiff resided and resides at 1910 University Avenue, Apt. 5A, Bronx, New York 10453.
2. On or about September 17, 2011, and at all times relevant herein, defendant, ALBERTO ENRIQUE, was and is an enlisted service member of the United States Army, stationed at Fort Stewart, Georgia.
3. On or about September 17, 2011, and at all times relevant herein, defendant PERCORARO was employed as a police officer with the NYPD.
4. On or about September 17, 2011, and at all times relevant herein, defendant TOLAND was employed as a police officer with the NYPD.
5. On or about September 17, 2012, and at all times relevant herein, defendant, the City of New York, was and is a municipal corporation lawfully organized and existing under the laws of the State of new York, and on said date and at all times relevant

herein, said defendant had and has a principal place of business located at 530 Municipal Building, New York, New York 10007.

6. That on or about December 17, 2011, and within ninety days after the accrual of the claim herein, plaintiff served her Notice of Claim, in writing, sworn to by the Claimant, containing a statement in compliance with Section 50-e of the General Municipal Law, served upon defendant, THE CITY OF NEW YORK, by delivering a copy thereof by personal service on THE CITY OF NEW YORK, its duly authorized officer for the receipt of such Notice of Claim.
7. That a hearing was held on February 13, 2012, in compliance with Section 50-h of the General Municipal Law.
8. That at least thirty days have elapsed prior to the commencement of this action since said claim was so presented to the defendant, THE CITY OF NEW YORK, for adjustment as aforesaid and that said defendant has neglected or refused to make an adjustment or payment thereafter.
9. That this action has been commenced within one year and ninety days after the happening of the event upon which the claim is based pursuant to Section 50-i of the General Municipal Law.
10. On or about September 17, 2011, at approximately 10:00 AM, and at all times relevant herein, each act of wrong doing hereinafter alleged to have been committed by defendants Police Officer PERCORARO and Police Officer TOLAND was committed within the scope of employment of their agency and/or authority and/or employment on behalf of defendant, THE CITY OF NEW YORK, which expressly

and/or impliedly ratified each act of wrongdoing hereinafter alleged to have been committed by these individual defendants.

11. Plaintiff, AMBAR ACOSTA, is the mother of the two infant children, JUELZ JUSTICE ACOSTA, whose date of birth is August 18, 2007, and JUSTICE JUELZ ENRIQUE, whose date of birth is February 5, 2009.
12. Defendant ALBERTO ENRIQUE is the father of the two infant children, JUELZ JUSTICE ACOSTA and JUSTICE JUELZ ENRIQUE.
13. On or about September 17, 2011, the plaintiff was at her place of residence when defendant ALBERTO ENRIQUE arrived accompanied by Police Officers PERCORARO and TOLAND, who upon information and belief, were then assigned to the 46th Precinct.
14. Defendants PERCORARO and TOLAND, under color of authority, unlawfully assisted defendant, ALBERTO ENRIQUE, in the removal of the two infant children from the physical custody of their mother and from the premises of their place of residence.
15. In order to effectuate the removal of the infants, the police officers appeared at the Plaintiff's residence in support of defendant, ALBERTO ENRIQUE, to execute a purported order of the Superior Court of Liberty County, in the State of Georgia.
16. The defendant police officers, under color of authority, and using the purported court order from the State of Georgia, ordered Plaintiff to turn over the children to defendant ALBERTO ENRIQUE.
17. The purported court order, as plaintiff learned at a later date, turned out to be a proposed order, not signed by a judge and, therefore, not a valid court order at all.

18. Pursuant to New York State law, even if said order had been duly signed by a judge, such an order from a court in the State of Georgia, granting temporary custody over children residing in territory outside of the jurisdiction of the issuing court, would have to be adopted by the appropriate New York State Court to be enforceable in this State.
19. Plaintiff sustained multiple personal and emotional injuries, including fear for the safety of her children, fear for her own safety, acute anxiety and despair for the welfare of her children, emotional distress, loss of enjoyment of life, humiliation, anxiety, embarrassment, intimidation, loss of sleep, loss of appetite, a continuous heightened state of alert, and a general feeling of listlessness, as a result of the conduct of defendants ALBERTO ENRIQUE and the CITY OF NEW YORK, its agents, servants and employees.
20. The defendants' actions were wrongful, intentional, egregious, opprobrious, and defendants are liable for punitive and exemplary damages as a result thereof.
21. By reason of the foregoing, the Plaintiff, AMBAR ACOSTA, has been damaged in a monetary amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction in this matter.

AS AND FOR A SECOND CAUSE OF ACTION

22. Plaintiff herewith repeats, restates and realleges the allegations contained in Paragraphs "1" through "21" herein above.
23. On or prior to September 17, 2011, defendant THE CITY OF NEW YORK, hired defendant PERCORARO as an officer of the New York City Police Department.

24. On or prior to September 17, 2011, defendant THE CITY OF NEW YORK, hired defendant TOLAND as an officer of the New York City Police Department (“NYPD”).
25. THE CITY OF NEW YORK has been negligent in the training and supervision of the defendant police officers herein, which is reflected in the conduct of the officers on the date in question, wherein under color of authority and within the scope of their employment, they exercised powers not vested in them and which are the sole province, concurrently, of the Supreme Court of the State of New York and the Family Court of the State of New York.
26. Defendant, The City of New York’s training and supervision of defendants PERCORARO and TOLAND was reckless and/or negligent, and resulted in the herein above described injuries and damages sustained by the plaintiff.
27. By reason of the foregoing, the plaintiff, AMBAR ACOSTA, has been damaged in a monetary amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this matter.

Wherefore, plaintiff AMBAR ACOSTA, demands judgment against the defendants in the First Cause of Action in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this matter; and in the Second Cause of Action in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this matter, together with the costs and disbursements in this action.

Dated: New York, New York
December 15, 2012

LAW OFFICE OF ROBERTO A. REVERÓN

/s/ *Roberto A. Reverón*

Roberto A. Reverón, Esq.
710 West 190th Street
Suite D
New York, New York 10040-2903
(917) 687-4278

TO: Alberto Enrique
For Stewart, GA 31314

TO: City of New York
Office of the Comptroller, Law Department
100 Church Street
New York, New York 10007

Index No.: _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

AMBAR ACOSTA,
Plaintiff,

-against-

ALBERTO ENRIQUE; P.O. PERCORARO;
P.O. TOLAND; and THE CITY OF NEW YORK
Defendants.

SUMMONS AND COMPLAINT

Attorney for Plaintiff:

ROBERTO ANTONIO REVERON

Attorney at Law

710 West 190TH Street

Suite D

New York, New York 10040-2903

Tel. (917) 687-4278

Fax (212) 942-3900

Fax (718) 701-3317

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous

Dated: December 15, 2012

Signature /s/ *Roberto A. Reverón*

Print Signer's Name: Roberto Antonio Reverón
Attorney At Law

PLEASE TAKE NOTICE

*that the within is a (certified) true copy of a
Summons and Complaint entered in the office of the
clerk of the within named Court on _____, 2012__*

Dated: December 15, 2012

ROBERTO ANTONIO REVERÓN, ESQ.
Attorney for Plaintiff
710 West 190TH Street
Suite D
New York, NY 10040-2903
(917) 687-4278